

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Md. Aminul Islam.

Civil Rule No. 700(con) of 2021.

Bangladesh, represented by the Deputy
Commissioner, Brahmanbaria and others.

..... petitioners.

Vs.

Rahimun Nessa and others.

..... Opposite-Parties.

Mr. Mohammad Abul Hasan, A.A.G

..... for the petitioners.

No one appears

.....for the opposite-parties.

Heard and Judgment on: 25th February, 2024.

This Rule was issued under section 5 of the Limitation Act calling upon the opposite-party No.1 to show cause as to why the delay of 2548 days in filing Civil Revision, should not be condoned.

The case of the petitioner for condonation of delay has been made out in the application for condonation of delay in filing the revisional application against the judgment and decree dated 18.11.2012 passed by the learned Joint District Judge, 2nd Court, Brahmanbaria in Title Appeal No.42 of 2007 dismissing the appeal and thereby affirming the judgment and decree dated 26.08.2001 passed by the learned Assistant Judge, Brahmanbaria in Civil Suit No.46 of 2000, decreeing the suit. It has been further stated that the impugned judgment and decree was passed on 18.11.2012 and after completion of all formalities filed the application for obtaining the certified copy which was made on 19.11.2012 and the same was

received on 14.02.2013 and sent to the solicitor office at Dhaka on 24.02.2013 and the said office received on 28.02.2013. After completion of official formalities records were sent to the Attorney General's Office on 04.03.2013 and unfortunately the records were misplaced in Attorney General's Office. After searching the records were found by 1st week of February, 2020 and endorsed to the concerned Assistant Attorney General on 12.02.2020 who after consulting records, prepared draft on 14.02.2020 and revisional application was filed on 18.02.2020 and as such the delay of 2548 days occurred.

Mr. Mohammad Abul Hasan, the learned Assistant Attorney-General appearing for the petitioners submits that there is no laches on the part of the Government in preferring the revisional application after procuring the required papers and documents from the relevant Court, the delay of 2548 days is required to be condoned. He further submits that each and every day of delay has been explained in the application and the delay of 2548 days in preferring revisional application before this court and the same is required to be condoned. He further submits that the delay of 2548 days which is unintentional and it should be condoned considering the unavoidable circumstances on the part of the Government which depends upon many officers and agencies to work out a decision. He further submits that the delay of 2548 days in filing the revisional application was caused due to the circumstances which were beyond control of the petitioners and there were no laches or negligence on the part of the petitioners. He lastly submits

that the delay of 2548 days is needs to be condoned for ends of justice otherwise the Government will be highly prejudiced. In support of his contention he has referred the decisions reported in 54 DLR (AD) 13 and 16 BLT 293.

No one appears for the opposite-parties to oppose the Rule.

I have gone through the application under section 5 of the Limitation Act filed by the petitioner and given my anxious consideration to the submissions advanced by the learned counsel for the petitioners.

Although the Limitation Act does not provide for any Specific period of Limitation for invoking discretionary jurisdiction of this Court under section 115 of the Code of Civil Procedure but a long standing practice one has to file it without causing inordinate delay.

For the convenience of understanding section 5 of the Limitation Act it reads as hereunder. Section 5 Extension of period in certain cases:

“Any appeal or application for a revision or a review of judgment or for leave to appeal or any other application to which this may be made applicable by or under any enactment for the time being in force may be admitted after the period of limitation prescribed thereof, when the appellant or applicant satisfies the Court that he had sufficient cause for not preferring the appeal or making the application within such period.”

In the case of Bangladesh Vs. Jahiruddin, reported in 1986 BLD (AD) 180 it was observed that-

“In the matter of condonation of delay Government does not enjoin any special privilege but the fact remains that due to the necessity to obtain opinions of various authorities concerned before filing an appeal, some time may reasonably be expected to elapse which in the case of any individual does not happen so, some consideration in appropriate circumstances may therefore, be extended to Government appearing as litigant.”

Another decision in the case of Circle Officer, Sutrapur Vs. Mohammad, reported in 43 DLR 84 it was observed that-

“In dealing with an application under section 5 of the Limitation Act, in the case of the Government public interest has to be duly considered and various authorities formalities and complications are involved and, as such, Government require a longer time making the decision and acting on it. If, on behalf of the Government, a reasonable explanation of delay is given, there is no reason why it should not be accepted.”

The learned Assistant Attorney General referred the case of Khairullah (Md) Vs. ADC (Revenue) and another, reported in 54 DLR(AD) 13, it was observed that-

“It is well settled that the condonation of delay under section 5 of the Limitation Act is a highly discretionary matter and considering the facts and circumstances the High Court Division exercised discretion in favour of the Government-respondent. In view of the aforesaid we hold that no illegality and wrong has been committed by the High Court Division in exercising the discretion.”

It appears that the file of the Government moved from one officer to other officers within usual normal gap of time but unfortunately the records were misplaced from the Attorney General's office on 04.03.2013, when the record was searched and after searching, records were found by 1st week of February, 2020 and endorsed to the concerned learned Assistant Attorney General on 12.02.2020 who prepared and filed a revisional application out of time the delay of 2548 days, it cannot be said that there had been gross negligence on the part of the Government in filing the revision. The reasons for delay are satisfactorily explained and, as such, the same can be accepted. Having considered the facts and circumstances of the case and in view of the aforesaid principles, I am led to the conclusion that the petitioners were prevented by sufficient cause in preferring revisional application in time which caused a delay of 2548 days. The cause of delay seems to have unintentional which was beyond control of the petitioners. I do not find that any negligence on the part of the petitioners.

Ordinarily a litigant does not stand to benefit by lodging an appeal or revision late. Refusing to condone delay can result in a meritorious matter being thrown out at the very threshold and cause of justice being defeated. As against this, when delay is condoned the highest that can happen is that a cause would be decided on merits after hearing the parties.

In view of the above, I find merit in the Rule to condone the delay of 2548 days in filing the revisional application.

In the result, the Rule is made absolute, however, without any order as to cost. The delay of 2548 days in filing the Civil Revision is hereby condoned.

The office is directed to do the needful forthwith. The petitioners may take necessary step for hearing the Revisional application in the appropriate Bench.

Md. Abadul Haque/ Bench Officer.